

November 20, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 14416

EXPIRATION DATE: January 31, 2007

1. GRANTEE: Sandia National Laboratories
Albuquerque, NM
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-time, one-way transportation in commerce of DOT Specification 3AA and ICC 3A cylinders containing nitrogen, compressed without pressure relief devices. These cylinders are installed in the Advance Flight Telescope (AFT) Payload. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.24(b)(1) in that the cylinders are allowed to release nitrogen into the satellite telescope during transportation; and § 173.301(f)(1) in that a cylinder not fitted with a pressure relief device is authorized, except as provided herein.
5. BASIS: This emergency special permit is based on the application of Sandia National Laboratories dated October 12, 2006, submitted in accordance with § 107.117 and

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a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Nitrogen, compressed	2.2	UN1066	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification 3AA or ICC 3A cylinder with a minimum service pressure of 2,015 psig. Each cylinders is in conformance with all requirements of the HMR except for the pressure relief device (PRD) requirements of § 173.301(f). The cylinders are manifolded in two groups of six cylinders. The cylinders are shipped in a horizontal position and must be securely braced and strapped to a pallet as shown on the drawings on file with the Office of Hazardous Materials Special Permits and Approvals.

b. OPERATIONAL CONTROLS -

(1) The AFT Payload must be shipped in a strong outside aluminum shipping container constructed in accordance with drawings on file the OHMSPA.

(2) Individual cylinder valves are open and the pressure is controlled by a regulator. The regulator must limit the maximum flow of nitrogen to 50 liters per minute when transported by motor vehicle.

(3) The AFT must be securely braced and strapped to a pallet during transportation. The cylinder valves and manifold must be equipped with an adequate protection during transportation.

(4) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the cylinders are not fitted with pressure relief devices and must provide appropriate guidance in the event of a fire.

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(5) The AFT Payload must be transported in an exclusive use vehicle which is temperature controlled.

8. SPECIAL PROVISIONS:

a. This special permit authorizes the one-time one-way transportation from Goodrich Aerospace, Danbury, Connecticut to Steward Air National Guard Base, NY and to Sandia National Laboratories from Kirtland Air Force Base, Albuquerque, New Mexico.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - Each cylinders must be marked "DOT-SP 14416." In addition, the outer shipping container must be plainly and durably marked on two opposite sides "DOT-SP 14416."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590.
Attention: PHH-31.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: MMTOUGHIRY/DLAVALLE